Paragraph 1. Purpose of EMIR

The European Market Infrastructure Regulation (EMIR) aims to increase the stability of the over-the-counter (OTC) derivatives market by imposing reporting, clearing and risk-mitigation obligations on counterparties.

Paragraph 2. Reporting Obligations

All counterparties to an OTC derivative contract must report the following data elements to the European Trade Repository (ETR): Trade_ID, Asset_Class, Execution_Timestamp, Counterparty_LEI, Underlying_ISIN, Notional_Amount, Price, Quantity, Currency, and Maturity_Date where applicable.

Paragraph 3. Underlying ISIN Requirement

The Underlying_ISIN field shall contain a 12-character alphanumeric International Securities Identification Number (ISIN). An ISIN that does not conform to the ISO 6166 standard shall be considered invalid and the report shall be rejected.

Paragraph 4. Quantity and Notional Validation

Quantity must be a strictly positive integer. Notional_Amount must be a non-negative decimal value with up to two decimal places. Zero or negative values will trigger a validation error.

Paragraph 5. Record-Keeping and Access

Reporting firms must retain the original trade data and all supporting documentation for a minimum of five years. The records shall be made available to regulators upon request in a machine-readable format.

Paragraph 6. Timeliness of Reporting

All derivative contracts executed after 1 January 2021 must be reported to the ETR within one business day of execution. Late filings are subject to a monetary penalty of EUR 5,000 per breach.

Paragraph 7. New Requirement – Clearing House Identifier (v1.1)

Effective 1 June 2021, any cleared derivative must include the field `Clearing_House` containing the LEI of the clearing organization. Omission of a valid clearing-house LEI will result in a rejection of the trade report under Article 14.

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5 Dodd-Frank Act – 2022 (Single version)

File name: Dodd_Frank_2022.pdf

Paragraph 1. Overview

The Dodd-Frank Wall Street Reform and Consumer Protection Act establishes comprehensive regulations for the U.S. derivatives market, including mandatory reporting, clearing, and margin requirements for swap transactions.

Paragraph 2. Swap Reporting Timeline

All swap transactions must be reported to the U.S. Commodity Futures Trading Commission (CFTC) Trade Reporting System (TRS) within 15 minutes of execution for standardised swaps, and within one business day for non-standardised swaps.

Paragraph 3. Counterparty Identification

For U.S.-based counterparties, a valid LEI is required. Foreign counterparties that are not LEI-registered must provide a Taxpayer Identification Number (TIN) in lieu of a LEI.

Paragraph 4. Required Data Elements

The reporting payload must contain the following fields: Trade_ID, Asset_Class, Execution_Timestamp, Counterparty_LEI (or TIN), Notional_Amount, Price, Quantity, Currency, and, for swaps, the `Swap_Identifier` (unique CFTC-assigned identifier).

Paragraph 5. Data Quality Controls

The CFTC will perform automatic validation on each submission. Records that fail validation (e.g., missing mandatory fields, negative price) will be returned with an error code and must be corrected and resubmitted within 24 hours.

Paragraph 6. Record Retention

Reporting firms are required to retain all swap data and supporting documentation for at least seven years. The records must be stored in a format that permits electronic retrieval and audit.

Paragraph 7. Enforcement Provisions

Willful or repeated failure to report accurately may result in civil penalties of up to USD 1 million per day and may also invoke criminal liability under Section 13 of the Dodd-Frank Act.